

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Anthony Cennamo	Team: Squad #05	CCRB Case #: 201604891	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 06/05/2016 9:00 PM, Sunday, 08/14/2016 12:00 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 12/5/2017	Precinct: 121		
Date/Time CV Reported Tue, 06/07/2016 11:45 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/07/2016 11:45 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Alexander Deguzman	02254	950292	121 PCT
2. POM Frank Callaghan	21843	946816	121 PCT
3. SGT Steven Zielinski	2478	943988	121 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Alexander Deguzman	Discourtesy: Police Officer Alexander Deguzman spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Frank Callaghan	Discourtesy: Police Officer Frank Callaghan spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POM Frank Callaghan	Abuse: Police Officer Frank Callaghan threatened to arrest § 87(2)(b)	C . Unsubstantiated
D . SGT Steven Zielinski	Discourtesy: Sergeant Steven Zielinski spoke discourteously to § 87(2)(b)	D . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB on June 7, 2016. § 87(2)(g)

On June 5, 2016, at approximately 9:00 p.m., § 87(2)(b) smelled gas originating from the apartment below her. § 87(2)(b)'s apartment is located at § 87(2)(b) in Staten Island. § 87(2)(b) called 311 and employees from Con Edison arrived, who concluded that the gas emanated from a poorly installed stove from the tenants apartment below her. The fire department arrived and concluded the gas was not lethal. Before § 87(2)(b) walked back upstairs to her apartment, she arranged a few plants on her stoop that she noticed were moved. One of the tenants from the apartment below her whose name § 87(2)(b) did not know then approached her and argued with her over the position of the plants. The tenant recorded a portion of the argument, which took place for ten minutes. Sergeant Steven Zielinski of the 121st Precinct, identified by the investigation, responded to the situation and diffused the argument. § 87(2)(b) told Sgt. Zielinski that her landlord gave her permission to leave the plants where she wanted them, and Sgt. Zielinski left the scene. Approximately 30 minutes later, § 87(2)(b) was inside of her apartment when she saw a marked patrol car pull into the driveway of her home. § 87(2)(b) went downstairs, where she was approached by PO Alexander Deguzman and PO Frank Callaghan of the 121st Precinct, as determined by the investigation. PO Deguzman asked § 87(2)(b) “What’s the problem with these fucking plants?” (**Allegation A**). § 87(2)(b) explained she did not call 911 about the plants, and that her tenants must have done so. The same tenant who recorded § 87(2)(b) earlier stepped outside and spoke with PO Callaghan about the argument that he had with § 87(2)(b) and mentioned he had a video that showed § 87(2)(b) making racist comments. § 87(2)(b) moved the plants again, when PO Callaghan stopped speaking with the male tenant and said, “Are you fucking kidding me with these plants?” (**Allegation B**). PO Deguzman and PO Callaghan spoke with § 87(2)(b) and the male tenant for approximately 30 minutes. During that time, § 87(2)(b) moved the plants back to where she had them when she realized the tenants moved them again during her interaction with the officers. PO Callaghan then said, “Touch that fucking plant again and I’ll arrest you” (**Subsumed within Allegation B and Allegation C**). At this point, Sgt. Zielinski arrived on the scene and stepped out of his car. As he approached § 87(2)(b)'s front stoop, he said, “Why am I back here for a fucking plant?” (**Allegation D**). § 87(2)(b) did not touch the plants again while Sgt. Zielinski was at the incident location. § 87(2)(b) was ordered to go inside by Sgt. Zielinski while PO Deguzman escorted the tenants into their first floor apartment. As Sgt. Zielinski walked back to his vehicle he yelled back toward § 87(2)(b)'s home, “Don’t make me come back here for a fucking plant” (**Subsumed within Allegation D**). § 87(2)(b) was not summonsed or arrested as a result of this incident.

There is no video footage of this incident that captures § 87(2)(b)'s interaction with the officers.

Mediation, Civil and Criminal Histories

- § 87(2)(b), § 87(2)(g)

- On September 9, 2016, a request was submitted to discover if § 87(2)(b) filed a notice of claim. On September 14, 2016, it was discovered that § 87(2)(b) did not file a notice of claim in regards to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

§ 87(2)(b) has not filed any prior complaints with the CCRB.

Sgt. Zielinski has been a member of the NYPD for nine years and has not been the subject of any prior CCRB complaints.

PO Deguzman has been a member of the NYPD for five years and has not been the subject of any prior CCRB complaints.

PO Callaghan has been a member of the NYPD for eight years and has been the subject of one prior complaint which contained one allegation which was not substantiated against him.

Allegation A -Discourtesy: Police Officer Alexander Deguzman spoke discourteously to

§ 87(2)(b)

According to § 87(2)(b) she called 911 earlier in the day in relation to a possible gas leak coming from her tenant's home. § 87(2)(b) stepped outside on her front stoop and noticed one of her plants had been moved. § 87(2)(b) placed this plant on an archway that stood over the top of the landing of those set of stairs, a position she originally had them in. § 87(2)(b) was approached by a female tenant who argued with her that the landlord did not want her to place plants on that archway. At this point, Sgt. Zielinski, who was present in response to the gas leak, interacted with § 87(2)(b) and the female tenant in regards to this dispute over the potted plant. Sgt. Zielinski ultimately instructed § 87(2)(b) to move the potted plant away from the archway, which § 87(2)(b) reluctantly complied with. § 87(2)(b) moved the potted plant to its original position after Sgt. Zielinski and the female tenant left. A few hours later at approximately 9:00 p.m., § 87(2)(b) observed a marked police vehicle outside of her home with its safety lights on and was confused as she did not call 911. § 87(2)(b) went downstairs and opened her front door to speak with the two officers who walked toward her home from the sidewalk. PO Deguzman allegedly yelled toward § 87(2)(b) approximately 20 feet away, "Okay, what's the fucking problem with these plants?"

PO Deguzman was with PO Callaghan in a marked patrol car when they received a call in regards to a domestic dispute at § 87(2)(b) in Staten Island. The call did not come from § 87(2)(b) but a female tenant that lives at § 87(2)(b) whose name PO Deguzman or PO Callaghan did not know. PO Deguzman observed a female tenant standing at the bottom of the stairs that would lead up to the apartment and saw § 87(2)(b) standing at the top, near the entrance to her home. PO Deguzman could also see that there was an archway that hung over the top of the stairwell with a potted plant hanging from it. PO Deguzman exited the vehicle and walked over toward § 87(2)(b)'s home with PO Callaghan. PO Deguzman knew that he would not be speaking with either § 87(2)(b) or the female tenant as PO Callaghan is better at handling domestic disputes of this nature. English is also not PO Deguzman's first language and felt more comfortable if PO Callaghan spoke to § 87(2)(b). PO Deguzman did not say anything to § 87(2)(b) upon his initial approach to her home and did not say, "Okay, what's the fucking problem with these plants?" PO Deguzman did not use any profanity at this point and did not hear PO Callaghan do so either.

PO Callaghan recalled the incident similarly to PO Deguzman. After arriving on the scene, PO Callaghan spoke to the female tenant at the bottom of the stairs while PO Deguzman

briefly spoke with § 87(2)(b) PO Callaghan instructed PO Deguzman to speak with § 87(2)(b) separately from the female tenant so that information could be collected properly to come to determination of what occurred prior to their arrival and so there would be no arguments while one party spoke their narrative toward the other. PO Callaghan did not hear PO Deguzman tell § 87(2)(b) “Okay, what’s the fucking problem with these plants?” upon their arrival and did not say so himself.

The female tenant, the only other individual present for incident, was not known by § 87(2)(b) or any of the officers that arrived on the scene. A Lexis and CLEAR search did not produce any results that could identify this tenant, as multiple individuals reside at § 87(2)(b) who could have been the female tenant in question. § 87(2)(g)

§ 87(2)(b) it is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B – Discourtesy: Police Officer Frank Callaghan spoke discourteously to

§ 87(2)(b)

Allegation C – Discourtesy: Police Officer Frank Callaghan threatened to arrest § 87(2)(b)

According to § 87(2)(b) PO Deguzman and PO Callaghan approached her and asked why she called 911. While they approached her front stoop, § 87(2)(b) noticed that a tenant that lives on the first floor was standing at the bottom of the stairs and that her potted plants had been moved away from the archway. § 87(2)(b) told the officers that she did not call 911 about the plants and did not know why officers were currently at her home. § 87(2)(b) called her landlord on the phone to ask where she could place her plants as both of the officers spoke with the female tenant, the individual who called 911 regarding the positioning of the plants. While on the phone, § 87(2)(b) noticed that the female tenant was showing the officers a video on a cell phone. The landlord told § 87(2)(b) that the plants could be placed on the archway like she had them earlier and § 87(2)(b) hung up the phone to arrange her plants the way she wanted. As she bent down to pick up the potted plant, PO Callaghan turned away from his conversation with the female tenant and allegedly said, “Are you fucking kidding me with these plants?” § 87(2)(b) put the plant down back where it sat on the ground and continued to observe PO Deguzman and PO Callaghan watch the video. § 87(2)(b) explained that what was said in the video was taken out of context and went to move the plant closer to her side of the stoop with her foot. PO Callaghan then allegedly said, “Touch that fucking plant again and I’ll arrest you.” § 87(2)(b) purposefully touched the plant again and told PO Callaghan that he did not have the authority to arrest her.

§ 87(2)(g)

§ 87(2)(b) PO Callaghan observed that § 87(2)(b) had her plant hanging from the archway as he approached the front stoop. Both PO Callaghan and PO Deguzman told § 87(2)(b) to remove the plant from where it was hanging after they spoke with the female tenant. This female tenant told both officers that the landlord did not want the plant hanging there. PO Callaghan and PO Deguzman both agreed that the plant could become a hazard that could potentially injure anybody who walked under it, which every tenant had to do in order to enter their home. PO Callaghan instructed § 87(2)(b) to take the plant down from the archway and

place it on her side of the stoop. § 87(2)(b) spoke in a loud tone of voice and waved her hands wildly as she told the officers that the landlord gave her permission to hang the plants from the archway. PO Callaghan was then shown a video by the female tenant of an argument that occurred before the officers arrived. PO Callaghan denied that he saw § 87(2)(b) move the plant back to its original position near the archway and did not say, “Are you fucking kidding me with these plants?” PO Callaghan also did not say to § 87(2)(b) “Touch that plant again or I’ll arrest you” at any point during the incident and did not use profanity toward § 87(2)(b). PO Callaghan denied that PO Deguzman used either of those lines toward § 87(2)(b) at any point during the incident as well. PO Deguzman did not hear PO Callaghan use the word fuck or threaten to arrest § 87(2)(b) at any point during the incident.

§ 87(2)(g)

Therefore, it is recommended that **Allegations B and C** be closed as **unsubstantiated**.

Allegation D – Discourtesy: Sergeant Zielinski spoke discourteously to § 87(2)(b)

According to § 87(2)(b) the video that the female tenant showed PO Callaghan and PO Deguzman lasted for approximately ten minutes. In the video, § 87(2)(b) is heard telling a male tenant, who was recording, that their family does not belong in this neighborhood and they should return to the ghetto. § 87(2)(b) did not deny that she said this, but stated that the tenants respond that the believe § 87(2)(b) is a member of the KKK. PO Callaghan or PO Deguzman decided to call a supervisor to the scene because they were not sure if this recorded video changes the nature of the complaint and if they needed to charge any individual with a criminal offense in regards. § 87(2)(b) did not recall which officer decided to call the supervisor, but when the Sergeant arrived recognized him as the sergeant that arrived earlier for the gas leak, Sgt. Zielinski. As soon as Sgt. Zielinski exited his vehicle and approached the scene, he yelled out toward § 87(2)(b) “Why am I back here for a fucking plant?” § 87(2)(b) expressed that she did not call 911 and that the tenants were in fact the individuals who complained about her plants. § 87(2)(b) told all of the officers that she did not want them there as she did not have any issues. Sgt. Zielinski did not approach § 87(2)(b) on the stoop, spoke to the officers for a few minutes and told § 87(2)(b) “Don’t make me come back here for a fucking plant.” All officers left the incident location and § 87(2)(b) did not interact with them again that night.

Sgt. Zielinski recalled that PO Callaghan requested he arrive on the scene to assess video footage of an incident that may result in criminal charges for one or both parties involved. Sgt. Zielinski arrived on the scene and saw PO Callaghan speaking with § 87(2)(b) while PO Deguzman spoke with an unnamed black female tenant. Sgt. Zielinski approached the scene and spoke with PO Deguzman about the video and the female tenant showed him the video in question. § 87(2)(b) spoke with PO Callaghan during this time, but Sgt. Zielinski did not recall what was being said. Sgt. Zielinski watched the video and determined that no further action was needed by PO Callaghan and PO Deguzman. Sgt. Zielinski did not hear § 87(2)(b) complain about any officer on the scene. Sgt. Zielinski only arrived on the scene for approximately ten minutes and left after he briefly assisted PO Callaghan and PO Deguzman. Sgt. Zielinski did not recall if he ever directly spoke to § 87(2)(b) and stated his interactions with any individual at the incident location were uneventful. Sgt. Zielinski did not say to § 87(2)(b) “Why am I back here for a fucking plant” or “Don’t make me come back here for a fucking plant” at any point during the incident and did not hear any other officer do so.

PO Callaghan stated that Sgt. Zielinski arrived approximately five minutes after being called to the scene and approached him upon arrival. PO Callaghan did not recall if Sgt. Zielinski spoke to § 87(2)(b) at any point upon arrival and did not hear him say “Why am I back here for a fucking plant?” PO Callaghan spoke with § 87(2)(b) as Sgt. Zielinski watched the video in question when it was eventually determined that there were no criminal offenses that needed to be addressed. Sgt. Zielinski asked PO Callaghan if they needed assistance with anything else and PO Callaghan assured him that he and PO Deguzman could handle it, as it was a simple dispute. Sgt. Zielinski left the scene and PO Callaghan did not hear Sgt. Zielinski say “Don’t make me come back here for a fucking plant” at any point during the incident. PO Deguzman did not hear Sgt. Zielinski say “Why am I back here for a fucking plant” upon his arrival approximately ten minutes after he was called. PO Deguzman did not interact with Sgt. Zielinski upon his arrival and continued to speak with the female tenant. PO Deguzman approached § 87(2)(b) with PO Callaghan as Sgt. Zielinski watched the video from the other female tenant. PO Deguzman did not recall how the conversation with § 87(2)(b) proceeded, but recalled that she was angry she could not keep her plants where she wanted to even with the landlord’s permission. PO Deguzman did not hear Sgt. Zielinski say, “Why am I back here for a fucking plant” or “Don’t make me come back here for a fucking plant” at any point during the incident. PO Deguzman left the incident location with PO Callaghan, after Sgt. Zielinski left approximately five minutes prior.

§ 87(2)(g)

Therefore, it is recommended that **Allegation D** be closed as **unsubstantiated**.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date